



REPLY TO
ATTENTION OF

DEPARTMENT OF THE ARMY
U.S. ARMY HUMAN RESOURCES COMMAND
1600 SPEARHEAD DIVISION AVENUE, DEPARTMENT 482
FORT KNOX, KENTUCKY 40122-5408

AHRC-PDP-TR

23 JUNE 2016

MEMORANDUM FOR

PDP-TR

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SUBJECT: Notification of Eligibility for Retired Pay at Non-Regular Retirement (20-Year Letter)

1. You have completed the required years of qualifying Reserve service and are eligible for retired pay on application at age 60 in accordance with Title 10, U.S. Code, Chapter 1223. Your eligibility for retired pay may not be denied or revoked on the basis of any error, miscalculation, misinformation, or administrative determination of years of creditable service performed unless it resulted directly from fraud or misrepresentation on your part. However, the number of years of creditable service retired pay is computed may be adjusted to correct any error, miscalculation, misinformation, or administrative determination. When such correction is made, you will be eligible for retired pay according to the number of years of creditable service, as corrected, from the date retired pay is granted.

2. You will not be entitled to retired pay under Title 10, U.S. Code, Section 12731, if you are now or later become entitled to retired pay from an armed force under any other provision of law, or to retainer pay as a member of the Fleet Reserve or Fleet Marine Corps Reserve. This also includes, but is not limited to, SEVERANCE PAY elected under Title 10, U.S. Code, Chapter 61, as part of a medical disability review.

3. If you are in a U.S. Army Reserve active status, you are reminded that since you have completed 20 years of qualifying service, you must earn a minimum of 50 points each retirement year to retain active status. This requirement may be waived one time for valid reasons, such as personal hardship. Contact your career advisor/personnel manager if you have any questions concerning participation.

4. Public Law 95-397, 30 Sep 78, created the Reserve Component Survivor Benefit Plan (RCSBP), in which you are now entitled to participate. RCSBP is the sole means of protecting your retired pay entitlement. Before making an election, contact the nearest Retirement Services Office: <http://www.armyg1.army.mil/rso/rso.asp> for assistance. Note: Public Law 106-398, 30 Oct 00, requires that upon receipt of this letter, a qualified Reserve Component (RC) member who is married will automatically be enrolled in the RCSBP under Option C below, Spouse and Child(ren) coverage based on Full Retired Pay, UNLESS spouse concurrence is provided (and witnessed by a notary) to allow one of the following elections:

a. Option A (defer enrollment until age 60 when you apply for retired pay). Under this option, if you die before you are officially retired and in receipt of retired pay, your survivors will not be entitled to any financial benefit based on your retired pay.

b. Option B (enroll now with the death annuity paid to your designated beneficiary when you would have been age 60, if you die before age 60).

c. Option C (enroll with the death annuity paid immediately upon notification of your death, regardless of your age).

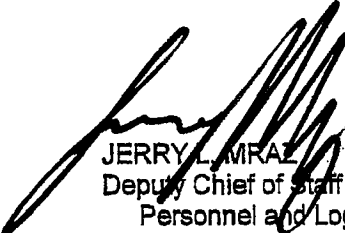
You must notify this command, using the DD Form 2656-5, RCSBP Election Certificate, of your decision within 90 days of the date of this memorandum. A copy of DD Form 2656-5 and other RCSBP pertinent forms are provided with the enclosed RCSBP booklet. It is strongly recommended that regardless of your RCSBP election, you complete DD Form 2656-5 and return the form in a timely manner so the Army has a record of your designated beneficiary(ies) by name and social security number. If you have been mobilized and deployed OCONUS, you or your spouse may notify this command, in writing, of your mobilized status and request a deferment of the RCSBP election requirement. Upon receipt of the written request, accompanied by the mobilization/active duty OCONUS deployment order, you will be granted a deferment. The deferment will end 90 days after termination of your mobilization. At that time, you must have notified this command of your election. Failure to do so will result in automatic coverage for spouse and child(ren) under option C. The cost for participation in the RCSBP will commence upon your receipt of retired pay. Detailed information concerning the RCSBP program and its cost is enclosed. **ANY RCSBP ELECTION OF A MARRIED SOLDIER THAT DOES NOT PROVIDE FULL COVERAGE FOR SPOUSE UNDER OPTION C REQUIRES SIGNATURE OF THE SPOUSE AND SOLDIER WITNESSED BEFORE AND BY A NOTARY PUBLIC. FAILURE TO MEET THIS REQUIREMENT WILL RESULT IN FULL COVERAGE FOR SPOUSE AND CHILD(REN) UNDER OPTION C.** You may contact the U.S. Army Human Resources Command Reserve Retirement Section at (502) 613-8950/888-276-9472 for answers to individual/specific questions if your unit or career advisor is unable to provide such assistance.

5. Reserve Soldiers who have completed 20 years of qualifying service for retirement may be eligible for the Veteran's Group Life Insurance program. Information regarding this program may be obtained from the Office of Servicemember's Group Life Insurance, 213 Washington Street, Newark, NJ 07102-2904, or by calling (800) 419-1473.

6. Point of contact for this action is the Reserve Retirement Section at (502) 613-8950/ 888-276-9472.

FOR THE COMMANDER:

Encl



JERRY L. MRAZ
Deputy Chief of Staff for
Personnel and Logistics